

SOFTWARE SERVICES AGREEMENT

Sample Contract - Clause Lens Eval Dataset

This Software Services Agreement ("Agreement") is entered into as of January 1, 2025 ("Effective Date") by and between ACME Software Inc., a Delaware corporation ("Provider"), and GlobalCorp Ltd., a United Kingdom limited company ("Client").

WHEREAS, Provider desires to provide certain software development and related services to Client; and

WHEREAS, Client desires to obtain such services from Provider;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. DEFINITIONS

1.1 "Agreement" means this Software Services Agreement, including all exhibits and schedules attached hereto.

1.2 "Services" means the software development, maintenance, and support services described in Exhibit A.

1.3 "Deliverables" means all work product, software, documentation, and other materials produced by Provider in the course of performing the Services.

1.4 "Intellectual Property Rights" means all patents, copyrights, trademarks, trade secrets, and other proprietary rights recognized in any jurisdiction.

1.5 "Confidential Information" has the meaning given in Section 6 of this Agreement.

2. PAYMENT TERMS

2.1 Fees. Client shall pay Provider the fees set forth in Exhibit B ("Fees"). All Fees are denominated in United States dollars and are exclusive of applicable taxes.

2.2 Invoicing. Provider shall issue invoices on a monthly basis no later than the fifth (5th) business day of each calendar month for Services rendered in the prior month.

2.3 Payment Due Date. Client shall remit payment within thirty (30) days of the invoice date ("Net 30"). Payments not received within thirty (30) days shall be considered overdue.

2.4 Late Payment. Overdue invoices shall accrue interest at the rate of one and one-half percent (1.5%) per month, or the maximum rate permitted by applicable law, whichever is lower. Provider reserves the right to suspend Services until all overdue amounts, including accrued interest, are paid in full.

2.5 Disputed Invoices. If Client disputes any portion of an invoice, Client shall notify Provider in writing within ten (10) days of receipt, specifying the disputed amount and the basis for the dispute. The undisputed portion of the invoice shall remain due and payable on the original due date.

3. CONFIDENTIALITY

3.1 Confidential Information. Each party ("Receiving Party") acknowledges that it may receive or have access to information of the other party ("Disclosing Party") that is proprietary information, trade secrets, or otherwise confidential, including but not limited to business plans, customer lists, financial information, technical specifications, source code, and pricing information (collectively, "Confidential Information").

3.2 Non-Disclosure Obligations. The Receiving Party shall: (a) hold all Confidential Information in strict confidence using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care; (b) not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party; (c) use Confidential Information solely for the purposes of performing its obligations or exercising its rights under this Agreement.

3.3 Exceptions. The obligations of confidentiality shall not apply to information that: (a) is or becomes publicly available through no breach of this Agreement; (b) was rightfully known to the Receiving Party prior to disclosure; or (c) is independently developed by the Receiving Party without use of the Confidential Information.

4. INDEMNIFICATION

4.1 Indemnification by Provider. Provider shall indemnify, defend, and hold harmless Client and its officers, directors, employees, agents, successors, and assigns (collectively, "Client Indemnitees") from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) ("Losses") arising out of or relating to: (a) Provider's material breach of this Agreement; (b) the gross negligence or willful misconduct of Provider; or (c) any claim that the Deliverables, as delivered and used in accordance with this Agreement, infringe any third-party Intellectual Property Rights.

4.2 Indemnification by Client. Client shall indemnify, defend, and hold harmless Provider and its officers, directors, employees, agents, successors, and assigns ("Provider Indemnitees") from and against any Losses arising out of or relating to: (a) Client's material breach of this Agreement; (b) the gross negligence or willful misconduct of Client; or (c) Client's use of the Deliverables in a manner not authorized by this Agreement.

4.3 Indemnification Procedure. The party seeking indemnification ("Indemnified Party") shall promptly notify the indemnifying party ("Indemnitor") of any claim for which indemnification is sought. The Indemnitor shall have the right to assume sole control of the defense and settlement of such claim, provided that the Indemnified Party may participate with counsel of its own choosing at its own expense. The Indemnified Party shall cooperate reasonably with the Indemnitor in the defense of such claim.

5. LIMITATION OF LIABILITY

5.1 Exclusion of Consequential Damages. IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, PUNITIVE, OR CONSEQUENTIAL DAMAGES, INCLUDING LOST PROFITS, LOSS OF DATA, LOSS OF GOODWILL, OR COST OF PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES, HOWEVER CAUSED AND UNDER ANY THEORY OF LIABILITY, WHETHER IN CONTRACT, STRICT LIABILITY, OR TORT (INCLUDING NEGLIGENCE), EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

5.2 Cap on Liability. EACH PARTY'S TOTAL CUMULATIVE LIABILITY TO THE OTHER PARTY FOR ALL CLAIMS ARISING UNDER OR RELATED TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT, OR OTHERWISE, SHALL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CLIENT TO PROVIDER IN THE TWELVE (12) MONTH PERIOD IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

5.3 Exceptions. The limitations in Sections 5.1 and 5.2 shall not apply to: (a) a party's indemnification obligations under Section 4; (b) damages arising from a party's gross negligence or willful misconduct; or (c) a party's breach of its confidentiality obligations under Section 3.

6. TERM AND TERMINATION

6.1 Term. This Agreement shall commence on the Effective Date and shall continue for an initial term of one (1) year (the "Initial Term"), unless earlier terminated in accordance with this Section 6. Following the Initial Term, this Agreement shall automatically renew for successive one-year periods (each, a "Renewal Term") unless either party provides written notice of non-renewal at least sixty (60) days prior to the end of the then-current term.

6.2 Termination for Cause. Either party may terminate this Agreement upon written notice of termination if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receiving written notice specifying the breach in reasonable detail.

6.3 Termination for Convenience. Either party may terminate this Agreement for any reason or no reason upon ninety (90) days' prior written notice to the other party. In the event of termination for convenience by Client, Client shall pay all Fees for Services rendered through the effective date of termination.

6.4 Effect of Termination. Upon the expiration or termination of this Agreement for any reason: (a) all rights and licenses granted herein shall immediately terminate; (b) each party shall promptly return or destroy all Confidential Information of the other party; and (c) all payment obligations accrued prior to the effective date of termination or expiration shall survive.

7. GOVERNING LAW AND DISPUTE RESOLUTION

7.1 Governing Law. This Agreement and all disputes, claims, or controversies arising out of or relating to this Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict-of-laws principles ("Choice of Law").

7.2 Exclusive Jurisdiction. The parties irrevocably consent to the exclusive jurisdiction and venue of the state and federal courts located in New Castle County, Delaware for the resolution of any dispute arising under this Agreement. Each party hereby waives any objection to the laying of venue of any such proceeding in such courts, and waives any claim that any such proceeding has been brought in an inconvenient forum.

7.3 Waiver of Jury Trial. EACH PARTY HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT TO A TRIAL BY JURY IN ANY ACTION, PROCEEDING, OR CLAIM ARISING OUT OF OR RELATING TO THIS AGREEMENT.

7.4 Injunctive Relief. Notwithstanding the foregoing, either party may seek preliminary or injunctive relief in any court of competent jurisdiction to prevent irreparable harm pending the resolution of a dispute.

8. GENERAL PROVISIONS

8.1 Entire Agreement. This Agreement, together with all exhibits and schedules, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, proposals, negotiations, representations, and understandings between the parties.

8.2 Amendment. This Agreement may not be modified or amended except by a written instrument signed by authorized representatives of both parties.

8.3 Waiver. No failure or delay by either party in exercising any right under this Agreement shall constitute a waiver of that right.

8.4 Severability. If any provision of this Agreement is found invalid or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid and enforceable, and the remaining provisions shall continue in full force and effect.

8.5 Notices. All notices under this Agreement shall be in writing and delivered by (a) personal delivery, (b) nationally recognized overnight courier, or (c) certified mail, return receipt requested.

SIGNATURE PAGE

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

ACME SOFTWARE INC.

By: _____

Name: Jane Smith

Title: Chief Executive Officer

Date: _____

GLOBALCORP LTD.

By: _____

Name: John Doe

Title: Vice President, Procurement

Date: _____